

Julfekar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 January 2024 · 2024:AHC:8546-DB · Writ-C No. 39568 of 2023 · **Petition disposed of as nothing survived after withdrawal of the demand notice.**

HEADNOTE

Writ challenging an electricity demand notice disposed of as infructuous after the Electricity Department withdrew the notice dated 8 December 2022 and produced a fresh notice dated 16 January 2024 seeking the petitioner's explanation before a fresh order. The Court did not decide whether recovery could proceed without a final assessment under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Julfekar challenged before the Allahabad High Court a demand notice dated 8 December 2022 for electricity dues, saying recovery was pressed without a final assessment order. On 17 November 2023 the Court stayed coercive action. On 10 January 2024 it adjourned Writ-C No. 39568 of 2023 so the Executive Engineer could explain recovery when the U.P. Electricity Supply Code, 2005 assessment procedure had not been followed. The Department then withdrew the notice and on 16 January 2024 issued a fresh notice seeking his explanation before a fresh order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::final-assessment

demand notice withdrawn before assessment challenge decided

HOLDING

The petition was disposed of because nothing survived once the Electricity Department withdrew the demand notice dated 8 December 2022, communicated that withdrawal to the District Magistrate on 10 January 2024, and issued a fresh notice dated 16 January 2024 seeking the petitioner's explanation so that a fresh order could be passed. ¶ 1-5

FLAG No clause number is stated. The 10 January 2024 order refers only to the procedure for making a final assessment under the U.P. Electricity Supply Code, 2005.

PRINCIPLE TAGS

procedural-listing-no-construction After the Department withdrew the impugned demand and issued a fresh notice seeking an explanation, the writ was disposed of as nothing survived. The Court made no construction of the Supply Code. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY DUES COULD BE RECOVERED WITHOUT A FINAL ASSESSMENT UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005

Put to the Executive Engineer on 10 January 2024; the impugned notice was withdrawn before any ruling. ¶ 4-5